

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

July 17, 2026

#	Case Name	Tentative
1.	Szabo vs. Rudy Project North America, L.P. 25-01477300	Motion to Compel Production The Court orders this case to a discovery referee. A referee may be appointed on motion of any party or on the court's own motion where necessary "to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon." [CCP § 639(a)(5); CRC 3.920(a)] A court may order a discovery referee where a majority of the following factors exist: "(1) there are multiple issues to be resolved; (2) there are multiple motions to be heard simultaneously; (3) the

		present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming.” (<i>Taggares v. Superior Court</i> (1998) 62 Cal.App.4th 94, 105.) In addition to the present motion, Plaintiff has filed 14 additional discovery motions. The motions include three motions to quash, a motion to compel further responses to special interrogatories, and several motions to compel production of documents that involve numerous document requests against multiple defendants. Defendants have allegedly not produced any documents and have also asserted the attorney-client and/or attorney work product privilege to most of the discovery at issue. Based on the foregoing, the Court finds good cause to appoint a discovery referee. Plaintiff shall submit a proposed order appointing a mutually agreed upon discovery referee before July 31, 2026. In the event the parties fail to mutually agree upon a discovery referee, the parties are ORDERED to each submit a list of three proposed discovery referees from which the Court will appoint a discovery referee, before August 14, 2026. The Court now sets an OSC re: Compliance with Court Order (Selection of Discovery Referee) for September 10, 2026, at 9:30 a.m. in Department C12. If the Discovery Referee is selected by the Court (or agreed upon by the parties) before that date, the Court will automatically vacate the Court date. Additionally, the Discovery motions currently on calendar for August 7, 2026, are continued to November 6, 2026. THIS DECISION IS FINAL Plaintiff to give notice of this ruling.
2.	Noria vs. Mason Reconstruction LLC 25-01498751	Motion to Be Relieved as Counsel of Record The motion of attorneys Joshua White and Allen Ho of Laurel Employment Law to withdraw as attorneys of record for Plaintiff Edwardo Noria is DENIED without prejudice.

		“Before filing any document, a party must serve . . . one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule.” (CRC, Rule 8.817, subd. (a)(1).) In addition, “[t]he party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . .” (CRC, Rule 8.817, subd. (a)(2).) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (CRC, Rule 3.1300, subd. (c).) Moving attorneys’ prior motion was denied due to lack of proof of service. Again, moving attorneys have failed to attach a valid proof of service, attaching only a Certified Mail Receipt. However, there is no proof of service to indicate what was served on Plaintiff on this date. Accordingly, the motion is again DENIED without prejudice for failure to file a valid proof of service. THIS RULING IS FINAL Moving Plaintiff’s counsel to give notice.
3.	Gietter vs. Corniche Sur Mer Homeowners Association 25-01523200	Motion for Attorney Fees Plaintiffs Michael Gietter and Patricia Gietter’s motion for attorney fees is DENIED. (Code Civ. Proc., § 425.16, subd. (c)(1) [“If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5”].) First, moving plaintiffs have not complied with the “safe harbor” provisions of Code Civ. Proc., § 128.5, subd. (f)(1)(B), nor provided any evidence (as opposed to argument) that such compliance was impractical. (<i>Zarate v. McDaniel</i> (2023) 97 Cal.App.5th 484, 490-491.) Second, moving plaintiffs do not argue that defendant Corniche Sur Mer Homeowners Association’s prior special motion to strike was solely intended to cause unnecessary delay, and have not satisfactorily shown that said motion was frivolous. (Code Civ. Proc., § 425.16, subd. (c)(1) [requirements for attorney fees to prevailing plaintiffs on anti-SLAPP motion]; <i>Gerbosi v. Gaims, Weil, West & Epstein, LLP</i> (2011) 193 Cal.App.4th 435, 450 [“Frivolous in this context means that any reasonable attorney would agree the motion was totally

		devoid of merit”].) Defendant’s anti-SLAPP motion relied on ample authorities that actions by a homeowners’ association can in fact constitute protected activity; that the court disagreed and found to the contrary, does not render the anti-SLAPP motion frivolous. Defendant shall give notice.
4.	Vangelos vs. Mehta 25-01520113	Motion for Sanctions OFF CALENDAR
5.	Garcia vs. La Habra City School District 25- 01535218	Motion to Quash Subpoena Plaintiff Agustin Garcia’s motion to quash the records subpoena issued to nonparty deponent Providence St. Jude Medical Center is GRANTED. (See Code Civ. Proc., § 1987.1.) This motion concerns the records subpoena issued by defendant La Habra City School District (defendant or District) to nonparty deponent Providence St. Jude Medical Center on 5/14/26, seeking any and all records pertaining to plaintiff without any limitation as to body part, medical condition, or subject matter, from 1/1/15 to the present. (Allton Decl. at Ex. A [subject subpoena].) Plaintiff’s right to privacy in his medical and financial records is well established in law. (<i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 841 (<i>Vinson</i>) [medical records]; <i>Davis v. Superior Court</i> (1992) 7 Cal.App.4th 1008, 1014 (<i>Davis</i>) [medical records]; <i>Cobb v. Superior Court</i> (1979) 99 Cal.App.3d 543, 550 [financial information].) Disclosure may be ordered when the information is directly relevant and essential to the fair resolution of the lawsuit, and where the need for disclosure outweighs privacy concerns. “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner. [Citation.]” (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1014; see <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552 [framework for determination of privacy objection]; <i>Hill v. National Collegiate Athletic Assn.</i> (1994) 7 Cal.4th 1, 35 (<i>Hill</i>) [same]; see also <i>Puerto v. Superior Court</i> (2008) 158 Cal.App.4th 1242, 1251 [harmonizing privacy analysis in pre and post-<i>Hill</i> decisions].) The party seeking disclosure of the constitutionally protected information bears the burden of establishing direct relevance. (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1017.)

		This has long been the law, there is nothing “bizarre” about it, and defendant has failed to meet this burden. While defendant is, to an extent, entitled to records concerning the body parts at issue in this action (see <i>Vinson, supra</i>, 43 Cal.3d at p. 842), this is not what the subpoena requests. The subpoena requests every single document concerning plaintiff regardless of body part or medical condition from a period of over 10 years. To the Court, this is patently overbroad. (See, e.g., <i>Hallendorf v. Superior Court</i> (1978) 85 Cal.App.3d 553, 557.) Defendant fails to show how all of these records are directly relevant to this case. Defendant is not entitled to review plaintiff’s entire medical history in the hope that it may disclose some condition bearing on his present claims. (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1017.) Defendant must show through evidence how the particular records sought are directly relevant and necessary; speculating that the records may reveal a contributing preexisting condition does not suffice. (<i>Ibid.</i>) Sanctions are GRANTED in the amount of \$1,650 in favor of plaintiff, and jointly and severally against defendant District and its counsel of record, Dominic A. Quiller, Esq. of McCune & Harber, LLP, payable within 30 days of notice. (See Code Civ. Proc., § 1987.2, subd. (a).) Defendant has opposed this motion without substantial justification, and the subpoena was oppressive as issued. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431 [when discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden].) Plaintiff shall give notice.
6.	Doe vs. Country Village Preschool and Kindergarten 25-01497141	Motion to Quash Discovery Subpoena Plaintiff JK Doe’s (a minor by and through her guardian ad litem, Christina Kayanan) motion to quash subpoenas is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., § 1987.1.) This motion concerns seven subpoenas issued by defendant Country Village Preschool and Kindergarten to the following nonparty deponents on 4/29/26: (1) Children’s Hospital of Orange County (CHOC) – medical records; (2) CHOC – billing records; (3) CHOC – radiology records; (4) Anthem Blue Cross Life and Health Insurance Company (Anthem); (5) Saddleback Valley Unified School District (Saddleback); (6) California Department of Social Services (CDSS),

	Community Care Licensing Division, Orange County Child Care Regional Office; and (7) Orange County Social Services Agency, Children and Family Services. The motion is GRANTED with respect to the subpoenas issued to CHOC, Anthem, and Saddleback, and these subpoenas are hereby quashed in their entirety. The motion is GRANTED IN PART with respect to the subpoena issued to the CDSS, and this subpoena is hereby quashed to the extent it seeks or encompasses any records of a minor. The subpoena issued to the CDSS shall remain in force to the extent it seeks any records that do not involve a minor. The motion is DENIED AS MOOT with respect to the subpoena issued to the Orange County Social Services Agency, as defendant has now withdrawn this subpoena as of 6/29/26. (See Caloca Decl. ¶ 8, Ex. B.) <u>CHOC, Anthem, Saddleback subpoenas.</u> Plaintiff has a right to privacy in her medical, financial, insurance, and education records. (See <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 841 (<i>Vinson</i>) [medical records]; <i>Davis v. Superior Court</i> (1992) 7 Cal.App.4th 1008, 1014 (<i>Davis</i>) [medical records]; <i>Cobb v. Superior Court</i> (1979) 99 Cal.App.3d 543, 550 [financial information]; Ins. Code, § 791.01 et seq. [insurance company files regarding an insured or claimant protected by statute]; Educ. Code, § 49076 [education records]; 20 U.S.C. § 1232g [education records]; <i>Rim of the World Unified School Dist. v. Superior Court</i> (2002) 104 Cal.App.4th 1393, 1396, 1397-1398 [same].) Disclosure may be ordered when the information is directly relevant and essential to the fair resolution of the lawsuit, and where the need for disclosure outweighs privacy concerns. “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner. [Citation.]” (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1014; see <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552 [framework for determination of privacy objection]; <i>Hill v. National Collegiate Athletic Assn.</i> (1994) 7 Cal.4th 1, 35 (<i>Hill</i>) [same]; see also <i>Puerto v. Superior Court</i> (2008) 158 Cal.App.4th 1242, 1251 [harmonizing privacy analysis in pre and post-<i>Hill</i> decisions].) The party seeking disclosure of the constitutionally protected information bears the burden of establishing direct relevance. (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1017.)
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While defendant is, to an extent, entitled to records concerning the body parts and conditions at issue in this action (see *Vinson, supra*, 43 Cal.3d at p. 842; see also Ferrera Decl. at Ex. 1; Caloca Decl. at Ex. A), this is not what these subpoenas request. The CHOC and Anthem subpoenas seek any and all documents concerning plaintiff regardless of body part or condition, and without any limitation whatsoever. The Saddleback subpoena also seeks any and all records pertaining to or identifying plaintiff, even though plaintiff has not alleged any conditions, injuries, or damages related to her academic performance, attendance history, or educational evaluations. This is patently overbroad. Defendant has failed to demonstrate how all of these records are directly relevant and essential to the fair resolution of this case, and defendant is not entitled to peruse through plaintiff's entire medical and educational history on the speculation that it may reveal a preexisting condition/alternate cause or other potentially relevant information. (See *Davis, supra*, 7 Cal.App.4th at p. 1017.)

CDSS subpoena. The subpoena issued to the CDSS requests 7 categories of documents. The first request for production seeks records concerning plaintiff, a minor (DOB 1/30/20); the second request seeks records concerning the alleged assailant, also a minor (DOB 5/24/19); and the third request seeks records regarding the subject incident involving these minors. (Ferrera Decl. at Ex. 2.) Requests for production Nos. 4-7 then seek all "notes, interviews, reports or correspondence relating to" certain employees of defendant from 1/1/22 to the present, without any limitation as to subject matter. (*Ibid.*)

The CDSS subpoena is procedurally improper and quashed to the extent it seeks or encompasses any records of a minor. Juvenile records (records of a minor) of the CDSS or a county child welfare agency cannot be subpoenaed through an ordinary civil subpoena; they can only be obtained through a juvenile court order pursuant to Welfare and Institutions Code section 827. (See *Lorenza P. v. Superior Court* (1988) 197 Cal.App.3d 607, 610-611; Cal. Rules of Court, rule 5.552.) The Juvenile Court has exclusive jurisdiction over the matter. (*Wescott v. County of Yuba* (1980) 104 Cal.App.3d 103, 110.)

The rest of the subpoena, however, is acceptable. Defendant may subpoena the CDSS for records relating to its employees to the extent those records do not involve any minors. Any such records would not implicate plaintiff (a minor) or her right to privacy.

		<u>Sanctions.</u> Sanctions are GRANTED in the amount of \$1,850 in favor of plaintiff and against defendant, payable within 30 days of notice. (See Code Civ. Proc., § 1987.2, subd. (a).) Most of the subpoenas were egregiously overbroad on their face and oppressive as issued, and defendant has largely opposed this motion without substantial justification. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) Plaintiff shall give notice.
7.	Boehner vs. Mercy House Living Centers 26-01543108	Motion - Other (Order to allow substituted service of summons and complaint) MOOT based on order granting substituted service March 26, 2026, ROA 65. In addition, Plaintiff filed a FAC on July 13, 2026, ROA 148.
8.	Smits vs. Mother Nature Trust 25-01482681	1. Motion for Leave to Amend 2. Case Management Conference Plaintiff Andrew Smits' Motion for Leave to File a Second Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Leave to amend is warranted as the proposed amended pleading states an alternative theory of liability. (See <i>Morgan v. Super. Ct.</i> (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion"]; <i>Kittredge Sports Co. v. Super. Ct.</i> (1989) 213 Cal.App.3d 1045, 1047 ["judicial policy favors resolution of all disputed matters in the same lawsuit"].) In opposition, Defendants challenges the legal sufficiency of the proposed amended complaint, arguing that Plaintiff's claims are barred by res judicata and the statute of limitations. The court is not going to entertain assertions regarding the legal sufficiency of Plaintiff's allegations in assessing a motion for leave to amend. Defendant can raise its challenges to the sufficiency of Plaintiff's claims in an appropriate proceeding. (See <i>Atkinson v. Elk Corp.</i> (2003)

		109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”).] Plaintiff shall separately file and serve the proposed Second Amended Complaint within 30 days of this ruling. Separate filing of the proposed Second Amended Complaint is required to ensure it is properly indexed in the Court’s electronic filing system. The Case Management Conference is CONTINUED to Friday, October 16, 2026, at 9:30 a.m. in Department C12. (Demurrer scheduled that date). Plaintiff shall provide notice.
9.	Murphy vs. Fox 26-01542023	1. Demurrer to Complaint 2. Case Management Conference Defendant The Regents of the University of California, erroneously sued and served as University of California Irvine Medical Center, d/b/a UCI Health’s demurrer to plaintiff Loretta Murphy’s 2nd cause of action for institutional negligence is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) The 2nd cause of action states sufficient facts, regardless of its title. (<i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 38 [“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer”]; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139, FN 1 [failure to properly label or title a cause of action is not determinative]; <i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [negligence elements]; <i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 606 [professional negligence elements]; <i>Leung v. Verdugo Hills Hospital</i> (2012) 55 Cal.4th 291, 310 [institutional negligence]; Complaint, ¶¶ 2, 6, 36 [duty], 16-21, 30, 37 [breach], 22-28 [proximately caused damages], 35 [incorporating prior allegations].) Moving defendant shall file an Answer to the Complaint within 30 days. The Case Management Conference is CONTINUED to November 19, 2026, at 9:30 a.m. in Department C12. Plaintiff shall give notice.

10.	A. vs. Beachside Recovery LLC 25-01534963	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Order to Show Cause re: Dismissal (Failure to Serve) 4. Case Management Conference OFF CALENDAR
11.	TVI, INC vs. Rojas 26-01557985	Motion to Consolidate WITHDRAWN
12.	Kennedy vs. Emanuel 22-01248389	Motion for Bifurcation Defendants Glenn Emanuel, Diane Emanuel, Outdoor Associates LLC, 605 Investments LLC, Evergreen Media LLC, Glenn Emanuel, as Trustee for the Emanuel Family Trust, and Diane Emanuel as Trustee for the Emanuel Family Trust's Motion for bifurcation is GRANTED in PART. (Civ. Code §3295, subd. (d).) The court will bifurcate and preclude evidence of Defendants' wealth and profits or financial condition only until after a trial during the liability phase of trial. Evidence of liability, compensatory damages, malice, oppression, or fraud entitling punitive damages relief will be allowed during the liability phase of trial. Civil Code section 3295(d) provides in relevant part, "The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294." "The purpose behind Civil Code section 3295, which allows bifurcation and preclusion of evidence of a defendant's wealth and profits during the liability phase of trial, is to minimize prejudice prior to the jury's determination of a prima facie case of liability for punitive damages. [citation omitted] However, such evidence is not to be excluded on the basis of prejudice when the information is relevant to liability." (<i>Notrica v. State Compensation Ins. Fund</i> (1999) 70 Cal.App.4th 911, 940.)

“As an evidentiary restriction, section 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant's wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. Bifurcation minimizes potential prejudice by preventing jurors from learning of a defendant's “deep pockets” before they determine these threshold issues.” (*Torres v. Automobile Club of So. Calif.* (1997) 15 Cal.4th 771, 777-778.)

Here, Defendants seek bifurcation of trial into two phases—liability and punitive damages. Defendants contend that the jury will be confused given that there are two distinct burdens of proof: preponderance of evidence for compensatory damages and clear and convincing evidence for punitive damages. The court finds that Defendants’ request for bifurcation exceeds the scope of section 3295. The court further finds that Defendants’ argument that the issue of malice, oppression, and/or fraud should be bifurcated subject to the discretion provided to the court in Code Civ. Proc. §§598 and 1048 is not persuasive.

The evidence of liability for compensatory damages and malice, oppression, or fraud will necessarily involve overlapping evidence and witness testimony. Bifurcating the issue of whether or not Defendants’ conduct rises to the level of malice, oppression, or fraud will needlessly waste judicial and jury time by requiring re-litigation of similar facts, conduct, witnesses, and documents regarding Defendants’ conduct in multiple phases. Any potential confusion to the jury may be solved with jury instructions regarding the different burdens of proof as well as a special verdict.

Bifurcating evidence related to the amount of punitive damages and defendants’ profits or financial condition until after the trier of fact has determined defendants’ liability and plaintiff’s entitlement to punitive damages, in the first place, balances Defendants’ concerns with efficiency and the policy purposes behind section 3295.

Defendants’ motion to bifurcate trial of punitive damages is granted in part as set forth above.

Moving Defendants to give notice.